

of the securities sold out (being trusts for the benefit of the parents and issue), and with a direction that the purchase to be so made shall be "deemed *personal estate* for all the purposes of the settlement and go accordingly," but *without a general receipt clause*, a trust for *reconversion* is implied, and the trustees can sell and sign a valid receipt (a).

[Trustees of personal estate whose trust authorises them to call in the trust property and invest the proceeds and vary the investments have an implied power of sale over real estate covenanted to be settled upon similar trusts (b).]

35. Sale may be by private contract or by auction.—The sale may be conducted by *public auction* or *private contract*, as the one or the other mode may be most advantageous, according to the circumstances of the case (c), and of course it is not an essential preliminary to a sale by private contract that the trustees should have previously attempted a sale by auction or even have inserted a public advertisement that the property was for sale (d). And it was held under the old Insolvent Debtors' Act, 7 Geo. 4, c. 57, s. 20, directing a sale by *auction*, that the assignees of the insolvent might sell a real estate by *private contract*, after an ineffectual attempt to dispose of it by auction (e). And, again, though the subsequent Insolvent Debtors' Act, 1 & 2 Vict. c. 110, s. 47, directed the assignees of insolvents to sell "in such manner" as the major part, in value, of the creditors should direct, yet in a case where the creditors resolved that there should be a reserved bidding of 325*l.*, and the assignees sold by auction for 310*l.*, it was held that the clause was merely *directory*, and that the deviation from the resolution of the creditors did not, therefore, vitiate the sale (f).

(a) *Tait v. Lathbury*, 35 Beav. 112; and see *Master v. De Croismar*, 11 Beav. 184.

[(b) *Re Garnett Orme and Hargreaves' Contract*, 25 Ch. D. 595.]

(c) See *Ex parte Dunman*, 2 Rose, 66; *Ex parte Hurly*, 2 D. & C. 631; *Ex parte Ladbroke*, 1 Mont. & A. 384; *Davey v. Durrant*, 1 De G. & J. 535. As to trusts created since 28th Aug. 1800, the legislature has now

enacted to this effect, unless the settlement direct to the contrary; 23 & 24 Vict. c. 145, s. 1; [(repealed by 45 & 46 Vict. c. 38, s. 64, as to which see *post*, p. 436, note (a)); 44 & 45 Vict. c. 41, s. 35.]

(d) See *Davey v. Durrant*, 1 De G. & J. 535; and see *Harper v. Hayes*, 2 Giff. 210; 2 De G. & J. 542.

(e) *Mather v. Priestman*, 9 Sim. 352.

(f) *Wright v. Maunder*, 4 Beav.